

Zakir Hussain vs State Of Hp & Others on 16 July, 2026

2026:

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA

Cr. MP(M) No. 1007 of 2026
Reserved on : 15.07.2026

Date of Decision: 16.7.2026.

Zakir Hussain

....Pet

Versus

State of HP & others

of

....Respond

Coram

rt

Hon'ble Mr Justice Rakesh Kainthla, Judge.

Whether approved for reporting?1 No.

For the Petitioner

: M/s Rakesh Kumar Chaudhary
and Panku Chaudhary,

For the Respondents/State

Advocates.
: Mr. Prashant Sen,
Advocate General.

Rakesh Kainthla, Judge

The petitioner has filed the present petition for seeking regular bail in FIR No. 118 of 2024, dated 12.08.2024, registered at Police Station Paonta Sahib District Sirmour, H.P. for the commission of offences punishable under Sections 15 and Whether reporters of Local Papers may be allowed to see the judgment? Yes.

2026:HHC:29076 29 of Narcotic Drugs and Psychotropic Substances (NDPS) Act (NDPS Act).

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2. It has been asserted that, as per the prosecution, the police had received secret information on 12.08.2024 that petitioner Zakir Hussain was going to supply narcotics in his vehicle bearing registration No. HP-85-5786. The information of was reduced to writing and was sent to the Supervisory Officer.

The police joined Deepak Kumar and went towards the vehicle rt bearing registration No. HP-85-5786. One person opened the door of the car and ran away after seeing the police. The police apprehended the driver. He revealed his name as Zakir Hussain, alias Pappu, the present petitioner. The police searched the vehicle and recovered five white plastic bags kept on the rear seat of the car. The police checked the bags and found 98.012 kilograms of poppy husk in them. The petitioner, Zakir Hussain, made a disclosure statement, which led to the recovery of 4 white plastic bags containing 78.438 kilograms of poppy husk. These allegations are false. The petitioner is suffering from diabetes, and he has to undergo surgical amputation of the large toe of the foot. The wound has not healed after the operation. The continued detention of the petitioner would endanger his life.

2026:HHC:29076 The bail is the rule, and jail is the exception. The petitioner would abide by the terms and conditions that the Court may impose.

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Hence, it was prayed that the present petition be allowed and the petitioner be released on bail.

3. The petition is opposed by filing a status report asserting that the police had received secret information on of 12.08.2024 that the petitioner, Zakir Hussain, was transporting a huge quantity of narcotics in his vehicle bearing registration No. rt HP-85-5786. The information was reduced to writing and sent to the Supervisory Officer. The police joined Deepak Kumar and went to the spot where the vehicle bearing registration No. HP-

85-5786 was parked. One person ran away after seeing the police.

The police apprehended the driver, and he revealed his name as Zakir Hussain. The police found five plastic bags on the rear seat of the vehicle. The police checked the contents and found that they contained 98.012 kilograms of poppy husk. The police arrested the petitioner and seized the poppy husk. The petitioner also made a disclosure statement, which led to the recovery of 4 plastic bags containing 78.438 kilograms of poppy husk. The poppy husk was sent for analysis to SFSL, and as per the result, the exhibit was a sample of poppy straw. F.I.R. No. 264 of 2008, 2026:HHC:29076 dated 25.07.2008, for the commission of offences punishable under Section 15 of the NDPS Act, F.I.R. No. 260 of 2012, dated .

16.07.2012, for the commission of offences punishable under Sections 15 of the NDPS Act and F.I.R. No. 133 of 2022, dated 25.06.2022, for the commission of offences punishable under Sections 15 of the NDPS Act at Police Station Poanta Sahib, of District Nahan, H.P., have been registered against the petitioner.

The petitioner is a known case of type 2 diabetes mellitus and rt chronic kidney disease, with bilateral kidney stones. His right big toe was amputated on 09.05.2026, and he was undergoing treatment in Dr Yashwant Singh Parmar, Medical College and Hospital at Nahan, District Sirmour, H.P. Hence, the status report.

4. I have heard M/s. Rakesh Kumar Chaudhary and Panku Chaudhary, learned counsel for the petitioner and Mr Prashant Sen, learned Deputy Advocate General, for the respondent/State.

5. Mr Rakesh Kumar Chaudhary, learned counsel for the petitioner, submitted that the petitioner is innocent and he was falsely implicated. The prosecution has failed to complete the 2026:HHC:29076 evidence despite the lapse of about 2 years, and the petitioner's right to a speedy trial is being violated. The petitioner would .

abide by the terms and conditions that the Court may impose. No fruitful purpose would be served by detaining the petitioner in custody. Therefore, he pleaded that the present petition be allowed and that the petitioner be released on bail. He relied upon of following judgments in support of his submissions:

Rajadurai vs. the State of Tamil Nadu SLP (Crl) rtNo. 4729 of 2026, decided on 05.05.2025;

Luxmi Dutt alias Laxmi Dutt alias Lakshmi Dutt vs State of H.P. SLP (Crl) No. 2113 of 2026 decided on 08.04.2026;

Lali Singh vs. State of H.P SLP (Crl) No. 1899 of 2026 decided on 25.03.2026;

Jitender Thakur vs. State of H.P. SLP (Crl) No. 2166 of 2026 decided on 13.04.2026;

Nittu vs. State of H.P. SLP (Crl) No. 2113 of 2026 decided on 02.04.2026;

Ram Lal vs. State of H.P. SLP (Crl) No. 4043 of 2026 decided on 12.05.2026;

Gaurav vs State of H.P. SLP (Crl) No. 504 of 2026 decided on 20.05.2026;

Lil Bhahadur vs. State of H.P. SLP (Crl) No. 8157 of 2025 decided on 30.07.2025;

2026:HHC:29076 X vs. State of H.P. 2024 SCC OnLine H.P. 1906;

Salim Valimamad Majothi vs. State of Gujrat :2023 SCC Online SC 659;

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Ganga Prasad @ Vicky vs State of NCT Delhi SLP (Crl) No. 3439 of 2026 decided on 25.02.2026;
and Mukesh Sangwan vs. State of NCT Delhi SLP (Crl) of No. 9542 of 2026 decided on 25.05.2026

6. Mr Prashant Sen, learned Deputy Advocate General, rt for the respondent, submitted that the State is providing treatment to the petitioner for diabetes. He is being regularly taken to Dr Yashwant Singh, Paramar Government Medical College and Hospital for his treatment. The petitioner was found in possession of a commercial quantity of poppy straw, and the rigours of Section 37 of the NDPS Act apply to his case. The petitioner has failed to satisfy the twin conditions laid down under Section 37 of the NDPS Act. The petitioner has criminal antecedents, and he would indulge in the commission of a similar crime in case of his release on bail. Therefore, he prayed that the present petition be dismissed.

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7. I have given a considerable thought to the submissions paid at the bar and have gone through the records .

carefully.

8. The parameters for granting bail were considered by the Hon'ble Supreme Court in Pinki v. State of U.P., (2025) 7 SCC 314: 2025 SCC OnLine SC 781, wherein it was observed at page 380:

of

(i) Broad principles for the grant of bail

56. In Gudikantis Narasimhulu v. High Court of A.P., (1978) 1 SCC 240: 1978 SCC (Cri) 115, Krishna Iyer, J., while elaborating rt on the content of Article 21 of the Constitution of India in the context of personal liberty of a person under trial, has laid down the key factors that should be considered while granting bail, which are extracted as under: (SCC p. 244, paras 7-9) "7. It is thus obvious that the nature of the charge is the vital factor, and the nature of the evidence is also pertinent. The

punishment to which the party may be liable, if convicted or a conviction is confirmed, also bears upon the issue.

8. Another relevant factor is whether the course of justice would be thwarted by him who seeks the benignant jurisdiction of the Court to be freed for the time being.

[Patrick Devlin, "The Criminal Prosecution in England"

(Oxford University Press, London 1960) p. 75 -- Modern Law Review, Vol. 81, Jan. 1968, p. 54.]

9. Thus, the legal principles and practice validate the Court considering the likelihood of the applicant interfering with witnesses for the prosecution or otherwise polluting the process of justice. It is not only traditional but rational, in this context, to enquire into the antecedents of a man who is applying for bail to find whether he has a bad record, particularly a record which suggests that he is likely to commit serious offences while on bail. In regard to habituals, 2026:HHC:29076 it is part of criminological history that a thoughtless bail order has enabled the bailee to exploit the opportunity to inflict further crimes on the members of society. Bail discretion, based on evidence about the criminal record of a .

defendant, is therefore not an exercise in irrelevance."

(emphasis supplied)

57. In *Prahlad Singh Bhati v. State (NCT of Delhi)*, (2001) 4 SCC 280: 2001 SCC (Cri) 674, this Court highlighted various aspects that the courts should keep in mind while dealing with an application seeking bail. The same may be extracted as follows: (SCC pp. 284-85, para 8) of "8. The jurisdiction to grant bail has to be exercised on the basis of well-settled principles, having regard to the circumstances of each case and not in an arbitrary manner. While granting the bail, the court has to keep in mind the nature of accusations, the nature of evidence in support thereof, the severity of the punishment which conviction will entail, the character, behaviour, means and standing of the accused, circumstances which are peculiar to the accused, reasonable possibility of securing the presence of the accused at the trial, reasonable apprehension of the witnesses being tampered with, the larger interests of the public or State and similar other considerations. It has also to be kept in mind that for the purposes of granting the bail the legislature has used the words "reasonable grounds for believing" instead of "the evidence" which means the court dealing with the grant of bail can only satisfy it (sic itself) as to whether there is a genuine case against the accused and that the prosecution will be able to produce prima facie evidence in support of the charge." (emphasis supplied)

58. This Court in *Ram Govind Upadhyay v. Sudarshan Singh*, (2002) 3 SCC 598: 2002 SCC (Cri) 688, speaking through Banerjee, J., emphasised that a court exercising discretion in matters of bail has to undertake the same judiciously. In highlighting that bail should not be granted as a matter of course, bereft of cogent reasoning, this Court observed as follows: (SCC p. 602, para 3) "3. Grant of

bail, though being a discretionary order, but, however, calls for the exercise of such a discretion in a 2026:HHC:29076 judicious manner and not as a matter of course. An order for bail bereft of any cogent reason cannot be sustained. Needless to record, however, that the grant of bail is dependent upon the contextual facts of the matter being dealt with by the .

court and facts do always vary from case to case. While the placement of the accused in society, though it may be considered by itself, cannot be a guiding factor in the matter of grant of bail, the same should always be coupled with other circumstances warranting the grant of bail. The nature of the offence is one of the basic considerations for the grant of bail -- the more heinous is the crime, the greater is the chance of rejection of the bail, though, however, dependent of on the factual matrix of the matter." (emphasis supplied)

59. In Kalyan Chandra Sarkar v. Rajesh Ranjan, (2004) 7 SCC 528: 2004 SCC (Cri) 1977, this Court held that although it is established that a court considering a bail application cannot undertake a detailed examination of evidence and an elaborate discussion on the merits of the case, yet the court is required to indicate the prima facie reasons justifying the grant of bail.

60. In Prasanta Kumar Sarkar v. Ashis Chatterjee, (2010) 14 SCC 496: (2011) 3 SCC (Cri) 765, this Court observed that where a High Court has granted bail mechanically, the said order would suffer from the vice of non-application of mind, rendering it illegal. This Court held as under with regard to the circumstances under which an order granting bail may be set aside. In doing so, the factors which ought to have guided the Court's decision to grant bail have also been detailed as under: (SCC p. 499, para 9) "9. ... It is trite that this Court does not, normally, interfere with an order passed by the High Court granting or rejecting bail to the accused. However, it is equally incumbent upon the High Court to exercise its discretion judiciously, cautiously and strictly in compliance with the basic principles laid down in a plethora of decisions of this Court on the point. It is well settled that, among other circumstances, the factors to be borne in mind while considering an application for bail are:

(i) whether there is any prima facie or reasonable ground to believe that the accused had committed the offence;

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(ii) nature and gravity of the accusation;

(iii) severity of the punishment in the event of conviction;

(iv) danger of the accused absconding or fleeing, if .

released on bail;

(v) character, behaviour, means, position and standing of the accused;

(vi) likelihood of the offence being repeated;

(vii) reasonable apprehension of the witnesses being influenced; and

(viii) danger, of course, of justice being thwarted by grant of of bail." (emphasis supplied) xxxxxxxx

62. One of the judgments of this Court on the aspect of rt application of mind and requirement of judicious exercise of discretion in arriving at an order granting bail to the accused is Brijmani Devi v. Pappu Kumar, (2022) 4 SCC 497 : (2022) 2 SCC (Cri) 170, wherein a three-Judge Bench of this Court, while setting aside an unreasoned and casual order (Pappu Kumar v. State of Bihar, 2021 SCC OnLine Pat 2856 and Pappu Singh v. State of Bihar, 2021 SCC OnLine Pat 2857) of the High Court granting bail to the accused, observed as follows:

(Brijmani Devi v. Pappu Kumar, (2022) 4 SCC 497 : (2022) 2 SCC (Cri) 170)], SCC p. 511, para 35) "35. While we are conscious of the fact that liberty of an individual is an invaluable right, at the same time while considering an application for bail courts cannot lose sight of the serious nature of the accusations against an accused and the facts that have a bearing in the case, particularly, when the accusations may not be false, frivolous or vexatious in nature but are supported by adequate material brought on record to enable a court to arrive at a prima facie conclusion.

While considering an application for the grant of bail, a prima facie conclusion must be supported by reasons and must be arrived at after having regard to the vital facts of the case brought on record. Due consideration must be given to facts suggestive of the nature of crime, the criminal antecedents of the accused, if any, and the nature of 2026:HHC:29076 punishment that would follow a conviction vis-à-vis the offence(s) alleged against an accused." (emphasis supplied)

9. Hon'ble Supreme Court held in State of Rajasthan v.

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Balchand, (1977) 4 SCC 308: 1977 SCC (Cri) 594: 1977 SCC OnLine SC 261 that the normal rule is bail and not jail, except where the gravity of the crime or the heinousness of the offence suggests otherwise. It was observed at page 308:

of

2. The basic rule may perhaps be tersely put as bail, not jail, except where there are circumstances suggestive of fleeing from justice or thwarting the course of justice or creating rt other troubles in the shape of repeating offences or intimidating witnesses and the like, by the petitioner who seeks enlargement on bail from the Court. We do not intend to be exhaustive but only illustrative.

3. It is true that the gravity of the offence involved is likely to induce the petitioner to avoid the course of justice and must weigh with us when considering the question of jail. So also, the heinousness of the crime...."

10. The present petition has to be decided as per the parameters laid down by the Hon'ble Supreme Court

11. The status report shows that the petitioner was occupying the vehicle bearing registration No. HP-85-5786, from which the police recovered 98.012 kilograms of opium poppy straw. The petitioner made a disclosure statement, and the police recovered 78.438 kilograms of opium poppy straw. The Central Government has notified 50 kg of poppy straw as the 2026:HHC:29076 commercial quantity, which means that the petitioner was found in possession of a commercial quantity of poppy straw.

Therefore, the rigours of Section 37 of the NDPS Act apply to the present case. Section 37 of the NDPS Act reads as follows:

"37. Offences to be cognizable and non-bailable. - (1) Notwithstanding anything contained in the Code of Criminal Procedure, 1973 (2 of 1974)--

of

(a) every offence punishable under this Act shall be cognizable;

(b) No person accused of an offence punishable for rtoffences under section 19 or section 24 or section 27A, and also for offences involving commercial quantity, shall be released on bail or on his own bond unless-

(i) the Public Prosecutor has been given an opportunity to oppose the application for such release, and

(ii) where the Public Prosecutor opposes the application, the court is satisfied that there are reasonable grounds for believing that he is not guilty of such an offence and that he is not likely to commit any offence while on bail.

(2) The limitations on granting of bail specified in clause (b) of sub-section (1) are in addition to the limitations under the Code of Criminal Procedure, 1973 (2 of 1974) or any other law for the time being in force, on granting of bail."

12. This section was interpreted by the Hon'ble Supreme Court in Union of India Versus Niyazuddin & Another (2018) 13 SCC 738, and it was held that in the absence of the satisfaction that the

2026:HHC:29076 accused is not guilty of an offence and he is not likely to commit an offence while on bail, he cannot be released on bail. It was .

observed:

"7. Section 37 of the NDPS Act contains special provisions with regard to the grant of bail in respect of certain offences enumerated under the said Section. They are:

(1) In the case of a person accused of an offence of punishable under Section 19, (2) Under Section 24, rt (3) Under Section 27A and (4) Of offences involving commercial quantity.

8. The accusation in the present case is with regard to the fourth factor, namely, commercial quantity. Be that as it may, once the Public Prosecutor opposes the application for bail to a person accused of the enumerated offences under Section 37 of the NDPS Act, in case the court proposes to grant bail to such a person, two conditions are to be mandatorily satisfied in addition to the normal requirements under the provisions of the Cr.P.C. or any other enactment.

(1) The court must be satisfied that there are reasonable grounds for believing that the person is not guilty of such an offence;

(2) that person is not likely to commit any offence while on bail."

13. This position was reiterated in State of Kerala Versus Rajesh, AIR 2020 SC 721, wherein it was held:

"19. This Court has laid down broad parameters to be followed while considering the application for bail 2026:HHC:29076 moved by the accused involved in offences under the NDPS Act. In Union of India vs. Ram Samujh and Ors., (1999) 9 SCC 429, it has been elaborated as under: -

"7. It is to be borne in mind that the aforesaid .

legislative mandate is required to be adhered to and followed. It should be borne in mind that in a murder case, the accused commits the murder of one or two persons, while those persons who are dealing in narcotic drugs are instrumental in causing death or in inflicting death-blow to a number of innocent young of victims, who are vulnerable; it causes deleterious effects and a deadly impact on the society; they are a hazard to the society; even if rt they are released temporarily, in all probability, they would continue their nefarious activities of trafficking and/or dealing in intoxicants clandestinely. The reason may be the large stake and illegal profit involved. This Court, dealing with the contention with regard to punishment under the NDPS Act, has succinctly observed about the adverse effect of such activities in Durand Didier vs. Chief Secy. Union Territory of Goa, (1990) 1 SCC 95) as under:

24. With deep concern, we may point out that the organised activities of the underworld and the clandestine smuggling of narcotic drugs and psychotropic substances into this country and illegal trafficking in such drugs and substances have led to drug addiction among a sizeable section of the public, particularly the adolescents and students of both sexes and the menace has assumed serious and alarming proportions in recent years. Therefore, in order to effectively control and eradicate 2026:HHC:29076 this proliferating and booming devastating menace, causing deleterious effects and a deadly impact on society as a whole, Parliament, in its wisdom, has .

made effective provisions by introducing Act 81 of 1985 specifying mandatory minimum imprisonment and fine.

8. To check the menace of dangerous drugs flooding the market, Parliament has provided that the person accused of offences under the NDPS Act should not be released on bail during trial of unless the mandatory conditions provided in Section 37, namely,

(i) there are reasonable grounds for believing that the accused is not guilty of such offence; and

(ii) that he is not likely to commit any offence while on bail are satisfied. The High Court has not given any justifiable reason for not abiding by the aforesaid mandate while ordering the release of the respondent accused on bail. Instead of attempting to take a holistic view of the harmful socio-economic consequences and health hazards which would accompany trafficking illegally in dangerous drugs, the court should implement the law in the spirit with which Parliament, after due deliberation, has amended."

20. The scheme of Section 37 reveals that the exercise of power to grant bail is not only subject to the limitations contained under Section 439 of the CrPC but is also subject to the limitation placed by Section 37, which commences with the non-obstante clause. The operative part of the said section is in the negative form prescribing the enlargement of bail to 2026:HHC:29076 any person accused of the commission of an offence under the Act unless twin conditions are satisfied. The first condition is that the prosecution must be given an opportunity to oppose the application, and .

the second is that the Court must be satisfied that there are reasonable grounds for believing that he is not guilty of such an offence. If either of these two conditions is not satisfied, the ban for granting bail operates.

21. The expression "reasonable grounds" means something more than prima facie grounds. It of contemplates substantial probable causes for believing that the accused is not guilty of the alleged offence. The reasonable belief contemplated in the rtprovision requires the existence of such facts and circumstances as are sufficient in themselves to justify satisfaction that the accused is not guilty of the alleged offence. In the case at hand, the High Court seems to have completely overlooked the underlying object of Section 37 that, in addition to the limitations provided under the CrPC, or any other law for the time being in force, regulating the grant of bail, its liberal approach in the matter of

bail under the NDPS Act is indeed uncalled for."

14. A similar view was taken in Union of India v. Mohd.

Nawaz Khan, (2021) 10 SCC 100: (2021) 3 SCC (Cri) 721: 2021 SCC OnLine SC 1237, wherein it was observed at page 110:

"21. Under Section 37(1)(b)(ii), the limitations on the grant of bail for offences punishable under Sections 19, 24 or 27- A and also for offences involving a commercial quantity are:

(i) The Prosecutor must be given an opportunity to oppose the application for bail;

and 2026:HHC:29076

(ii) There must exist "reasonable grounds to believe" that: (a) the person is not guilty of such an offence; and (b) he is not likely to commit any offence while on bail.

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22. The standard prescribed for the grant of bail is "reasonable ground to believe" that the person is not guilty of the offence. Interpreting the standard of "reasonable grounds to believe", a two-judge Bench of this Court in Shiv Shanker Kesari [Union of India v. Shiv Shanker Kesari, (2007) 7 SCC 798: (2007) 3 SCC (Cri) 505], held that: (SCC pp. 801-02, paras 7-8 & of 10-11) "7. The expression used in Section 37(1)(b)(ii) is "reasonable grounds". The expression means something more than prima facie grounds. It rt connotes substantial probable causes for believing that the accused is not guilty of the offence charged, and this reasonable belief, contemplated in turn, points to the existence of such facts and circumstances as are sufficient in themselves to justify the recording of satisfaction that the accused is not guilty of the offence charged.

8. The word "reasonable" has in law the prima facie meaning of reasonable in regard to those circumstances of which the actor, called on to act reasonably, knows or ought to know. It is difficult to give an exact definition of the word "reasonable".

'7. ... Stroud's Judicial Dictionary, 4th Edn., p. 2258 states that it would be unreasonable to expect an exact definition of the word "reasonable". Reason varies in its conclusions according to the idiosyncrasy of the individual, and the times and circumstances in which he thinks. The reasoning which built up the old scholastic logic sounds now like the jingling of a child's toy.'

2026:HHC:29076 [See MCD v. Jagan Nath Ashok Kumar [MCD v. Jagan Nath Ashok Kumar, (1987) 4 SCC 497], SCC p. 504, para 7 and Gujarat Water Supply & Sewerage Board v. Unique Erectors (Gujarat) (P) .

Ltd. [Gujarat Water Supply & Sewerage Board v.

Unique Erectors (Gujarat) (P) Ltd., (1989) 1 SCC 532]] ***

10. The word "reasonable" signifies "in accordance with reason". In the ultimate analysis, it is a question of fact whether a of particular act is reasonable or not, depends on the circumstances in a given situation. (See Municipal Corpn. of Greater Mumbai v. Kamla Mills Ltd. [Municipal Corpn. of Greater Mumbai rt v. Kamla Mills Ltd. (2003) 6 SCC 315]

11. The court, while considering the application for bail with reference to Section 37 of the Act, is not called upon to record a finding of not guilty. It is for the limited purpose, essentially confined to the question of releasing the accused on bail, that the court is called upon to see if there are reasonable grounds for believing that the accused is not guilty and records its satisfaction about the existence of such grounds. But the court has not to consider the matter as if it is pronouncing a judgment of acquittal and recording a finding of not guilty."

(emphasis supplied)

23. Based on the above precedent, the test which the High Court and this Court are required to apply while granting bail is whether there are reasonable grounds to believe that the accused has not committed an offence and whether he is likely to commit any offence while on bail. Given the seriousness of offences punishable under the NDPS 2026:HHC:29076 Act and in order to curb the menace of drug trafficking in the country, stringent parameters for the grant of bail under the NDPS Act have been prescribed."

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15. This position was reiterated in Narcotics Control Bureau v. Mohit Aggarwal, 2022 SCC OnLine SC 891, wherein it was observed:

"11. It is evident from a plain reading of the non-obstante of clause inserted in sub-section (1) and the conditions imposed in sub-section (2) of Section 37 that there are certain restrictions placed on the power of the Court when granting bail to a person accused of having committed an rt offence under the NDPS Act. Not only are the limitations imposed under Section 439 of the Criminal Procedure Code, 1973, to be kept in mind, but the restrictions placed under clause (b) of sub-section (1) of Section 37 are also to be factored in. The conditions imposed in subsection (1) of Section 37 are that (i) the Public Prosecutor ought to be given an opportunity to oppose the application moved by an accused person for release, and (ii) if such an application is opposed, then the Court must be satisfied that there are reasonable grounds for believing that the person accused is not guilty of such an offence.

Additionally, the Court must be satisfied that the accused person is unlikely to commit any offence while on bail.

12. The expression "reasonable grounds" has come up for discussion in several rulings of this Court. In "Collector of Customs, New Delhi v. Ahmadalieva Nodira" (2004) 3 SCC 549, a decision rendered by a Three Judges Bench of this Court, it has been held thus: --

"7. The limitations on granting bail come in only when the question of granting bail arises on merits. Apart from the grant of opportunity to the Public Prosecutor, the other twin conditions which have relevance so far as the present accused-respondent is concerned, are 2026:HHC:29076 the satisfaction of the court that there are reasonable grounds for believing that the accused is not guilty of the alleged offence and that he is not likely to commit any offence while on bail. The conditions are .

cumulative and not alternative. The satisfaction contemplated regarding the accused being not guilty has to be based on reasonable grounds. The expression "reasonable grounds" means something more than prima facie grounds. It contemplates substantial probable causes for believing that the accused is not guilty of the alleged offence. The reasonable belief contemplated in the of provision requires the existence of such facts and circumstances as are sufficient in themselves to justify satisfaction that the accused is not guilty of the alleged offence." [emphasis added] rt

13. The expression "reasonable ground" came up for discussion in "State of Kerala v. Rajesh" (2020) 12 SCC 122, and this Court has observed as below:

"20. The expression "reasonable grounds" means something more than prima facie grounds. It contemplates substantial probable causes for believing that the accused is not guilty of the alleged offence. The reasonable belief contemplated in the provision requires the existence of such facts and circumstances as are sufficient in themselves to justify satisfaction that the accused is not guilty of the alleged offence. In the case at hand, the High Court seems to have completely overlooked the underlying object of Section 37 that, in addition to the limitations provided under the CrPC, or any other law for the time being in force, regulating the grant of bail, its liberal approach in the matter of bail under the NDPS Act is indeed uncalled for." [emphasis added]

14. To sum up, the expression "reasonable grounds" used in clause (b) of Sub-Section (1) of Section 37 would mean credible, plausible and grounds for the Court to believe that the accused person is not guilty of the alleged offence. For arriving at any such conclusion, such facts and 2026:HHC:29076 circumstances must exist in a case that can persuade the Court to believe that the accused person would not have committed such an offence. Dovetailed with the aforesaid satisfaction is an additional consideration that the accused .

person is unlikely to commit any offence while on bail.

15. We may clarify that at the stage of examining an application for bail in the context of Section 37 of the Act, the Court is not required to record a finding that the accused person is not guilty. The Court is also not expected to weigh the evidence for arriving at a finding as to whether the accused has committed an offence under the NDPS Act or not.

of The entire exercise that the Court is expected to undertake at this stage is for the limited purpose of releasing him on bail. Thus, the focus is on the availability of reasonable grounds for believing that the accused is not guilty of the offences that he has been charged with and that he is unlikely to commit an offence under the Act while on bail.

16. In the present case, the petitioner was prima facie found in possession of a commercial quantity of opium poppy straw, and his criminal antecedents would show that there is a possibility that the petitioner would indulge in the commission of a crime if released on bail. Thus, the petitioner has not satisfied the twin conditions laid down under Section 37 of the NDPS Act, and he cannot be held entitled to bail.

17. It was submitted that the prosecution has failed to complete the evidence, which violates the petitioner's right to a speedy trial, and the petitioner is entitled to bail on this consideration. This submission will not help the petitioner.. The 2026:HHC:29076 petitioner was, prima facie, found in possession of a commercial quantity of opium poppy straw, and he is not entitled to bail .

without satisfying the twin conditions laid down under Section 37 of the NDPS Act. It was laid down by the Hon'ble Supreme Court in Union of India vs. Vijin K. Varghese 2025: INSC:1316 that bail cannot be granted on the ground of prolonged incarceration of without satisfying the twin conditions laid down under Section 37 of the NDPS Act. It was observed: -

rt "17. The High Court then, on the strength of those premises, recorded a finding that there exist reasonable grounds to believe that the applicant is not guilty of the alleged offence, treating prolonged incarceration and likely delay as the justification for bail. Such a finding is not a casual observation. It is the statutory threshold under Section 37(1)(b)(ii), which would disentitle the discretionary relief and grant of bail must necessarily rest on careful appraisal of the material available. A conclusion of this nature, if returned without addressing the prosecution's assertions of operative control and antecedent involvement, risks trenching upon the appreciation of evidence which would be in the domain of the trial court at first instance.

18. This Court ordinarily shows deference to the discretion exercised by the High Court while considering the grant of bail. However, offences involving a commercial quantity of narcotic drugs stand on a distinct statutory footing. Section 37 enacts a specific embargo on the grant of bail and obligates the Court to record satisfaction on

the twin requirements noticed above, in addition to the ordinary tests under the Code of Criminal Procedure.

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19. In the present case, the High Court has not undertaken the analysis of those twin requirements with reference to the material placed by the prosecution. The orders dated 22.01.2025 and 12.03.2025 do not advert to the allegation .

regarding the respondent's prior involvement in a seizure of narcotic drugs and psychotropic substances only days prior to the seizure forming the subject matter of the present complaint, nor do they engage with the prosecution's assertion as to the respondent's role in arranging, importing, clearing and supervising the consignments. The omission to consider these factors of bears directly upon the statutory satisfaction required by Section 37(1)(b)."

18. A similar view was taken in Union of India v Namdeo rt Ashruba Nakade SLP (Crl.) 9792/2025, decided on 07.11.2025, wherein it was observed:

"11. In the present case, this Court finds that though the Respondent-accused was in custody for one year, four months, and charges have not been framed, yet the allegations are serious inasmuch as not only is the recovery much in excess of the commercial quantity, but the Respondent-accused allegedly got the cavities ingeniously fabricated below the trailer to conceal the contraband.

12. Prima facie, this Court is of the opinion that the Respondent-accused is involved in drug trafficking in an organised manner. Consequently, no case for dispensing with the mandatory requirement of Section 37 of the NDPS Act is made out in the present matter."

19. This position was reiterated in State of Punjab v.

Sukhwinder Singh, 2026 SCC OnLine SC 671, wherein it was observed: -

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9. It is well-settled that in matters involving recovery of contraband in commercial quantity, the twin conditions under Section 37(1)(b)(ii) of the NDPS Act are mandatory and entail no relaxation merely on the ground that the .

accused has undergone prolonged incarceration during the pendency of trial. The provision casts upon the Court a duty to record, before enlarging an accused on bail, its satisfaction on two cumulative conditions, first, that there exist reasonable grounds for believing that the accused is not guilty of the offence charged; and second, that he is not likely to commit any offence while on bail.

The of recording of such satisfaction is not a mere formality but a mandatory precondition, the non-observance of which vitiates the grant of bail. This Court, in *Kashif* (supra), has held in no uncertain terms that the recording of rt satisfaction on the twin conditions under Section 37 is mandatory and not merely directory, and that an order granting bail without such recorded satisfaction stands vitiated and cannot be sustained. The same view stands reiterated in *Lalrintluanga Sailo* (supra).

10. The impugned order, on its own showing, does not record the satisfaction mandated under Section 37(1)(b)(ii) of the NDPS Act. Far from recording such satisfaction, the High Court has gone on to observe that 'the rigours of Section 37 of the NDPS Act can be diluted bearing in mind the right to a speedy trial.' Such an approach is plainly contrary to the settled law laid down by this Court and deserves to be set aside on this ground alone. The right to speedy trial, rooted in Article 21 of the Constitution, is undoubtedly a precious Constitutional right. That said, in matters governed by a special enactment such as the NDPS Act, particularly where the recovery is of a commercial quantity, the said right under Article 21 must be exercised within the framework of Section 37 and cannot be pressed into service solely on the ground of delay to override it. The constitutional right under Article 21 and the special provision of law under Section 37, NDPS Act, are to be read harmoniously and not 2026:HHC:29076 placed in opposition to each other. The High Court, by failing to record its satisfaction on the twin conditions under Section 37, has, in this Court's view, committed an error.

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9. The position of law on the grant of bail in matters involving the recovery of a commercial quantity of contraband under the NDPS Act is well settled. Section 37(1)(b)(ii) of the NDPS Act is cast in mandatory terms. Where the Public Prosecutor opposes the bail application, the Court can enlarge an accused on bail only upon of recording its satisfaction on two cumulative conditions:

first, that there are reasonable grounds for believing that the accused is not guilty of the offence; and second, that the accused is not likely to commit any offence while on rt bail. The recording of such satisfaction is not a mere formality but a jurisdictional requirement. This Court in *Kashif* (supra) has held, in plain terms, that the non-recording of the twin satisfaction, being mandatory in nature, renders an order granting bail unsustainable. A similar view has been expressed in *Lalrintluanga Sailo* (supra) and *Ajay Kumar Singh* (supra).

10. When the impugned order is tested against that settled position, it becomes apparent that paragraph 8 of the impugned order, which carries the weight of the reasoning, does not contain a finding on either of the twin conditions prescribed by Section 37(1)(b)(ii) of the NDPS Act. What the High Court has, instead, proceeded on is the proposition that "the rigours of Section 37 of the NDPS Act can be diluted bearing in mind the right to a speedy trial". The right to speedy trial under Article 21 of the Constitution is undoubtedly a valuable constitutional guarantee, but in the context of a

special statute such as the NDPS Act dealing with commercial quantity, that right has to be read alongside, and not in displacement of, the mandate of Section 37. The omission to record the twin satisfaction prescribed by the statute, it appears, may have escaped the attention of the High Court.

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20. Therefore, the petitioner cannot claim bail because of the violation of his right to a speedy trial.

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21. In Rajadurai (supra), Laxmi Dutt (supra), Lali Singh (supra), Jitender Thakur (supra), Nittu (supra), Ram Lal (supra), Gaurav (supra), Lil Bahadur (supra), it has been held that the trial was not likely to conclude soon. In the present case, the matter has been of listed before learned Trial Court for prosecution evidence on 30.07.2026 and there is nothing on record to show that the trial is rt not likely to conclude soon.

22. In X vs. State of H.P (supra), Salim Valimamad Majothi (Supra) and Ganga Prasad @ Vicky (supra) and Mukesh Sangwan (supra), the accused were released on medical ground, but the facts of these cases do not show that the rigours of Section 37 of NDPS Act applied to the cited cases, therefore, the cited judgemnt will not assist the petitioner.

23. It was submitted that the petitioner is suffering from diabetes and he should be released on bail. This submission will not assist the petitioner. The illness of the petitioner will not override the provisions of Section 37 of the NDPS Act. In State of Meghalaya v. Lalrintluanga Sailo, (2024) 15 SCC 36, the petitioner was suffering from paraplegia. The Hon'ble Supreme Court held 2026:HHC:29076 that the medical condition cannot be a reason to enlarge a person on bail without satisfying the conditions laid down under Section .

37 of the NDPS Act. It was observed: -

14. We have no hesitation in saying that in the above circumstances, it can only be held that the twin conditions under Section 37 of the NDPS Act are not satisfied, and the sole reason that the accused is an HIV patient cannot be a reason to enlarge her on bail. Since the impugned order of [Lalrintluanga Sailo v. State of Meghalaya, 2023 SCC OnLine Megh 562] was passed without adhering to the said provision and in view of the rigour thereunder, the accused Smt X is not entitled to be released on bail, the rt impugned order [Lalrintluanga Sailo v. State of Meghalaya, 2023 SCC OnLine Megh 562] invites interference.

24. It was submitted that the bail is a Rule and Jail is an exception, and the petitioner is entitled to bail on this consideration. This submission will not help the petitioner, as he is prima facie involved in the commission of an offence punishable under Section 20 of the NDPS Act involving the commercial quantity. It was laid down by the Hon'ble Supreme Court in Narcotics Control Bureau v. Kashif, (2024) 11 SCC 372:

2024 SCC OnLine SC 3848 that in cases under the NDPS Act involving the commercial quantity, the negation of bail is the rule and its grant an exception. It was observed at page 381:

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9. There has been a consistent and persistent view of this Court that in the NDPS cases, where the offence is punishable with a minimum sentence of ten years, the accused shall generally not be released on bail. Negation of .

bail is the rule, and its grant is an exception. While considering the bail application, the court has to bear in mind the provisions of Section 37 of the NDPS Act, which are mandatory in nature. The recording of findings as mandated in Section 37 is a sine qua non for granting bail to the accused involved in the offences under the said Act."

of

25. No other point was urged.

26. In view of the above, the present petition fails, and it is dismissed.

rt

27. The observations made hereinabove are regarding the disposal of this petition and will have no bearing whatsoever on the case's merits.

(Rakesh Kainthla) Judge 16th July, 2026 (Ravinder)